

Opinion of the Court

the Court refused to Bail him, & c.” *Rex v. Hutchinson*, 3 Keb. 785, 84 Eng. Rep. 1011 (1677).

From this report, all that we can tell about the court’s thinking is that it found no convincing reason to grant bail, as was typical in murder cases.³ The rest of the report concerns claims by an attorney. We are told that he contested the jurisdiction of the commission before which Hutchinson was to be tried, apparently a special commission that would have issued pursuant to a statute enacted under Henry VIII.⁴ The commission lacked jurisdiction, the attorney seemed to suggest, because the crime had occurred in Portugal and thus “out of the Kings Dominions.” The attorney claimed that jurisdiction lay instead with “a Constable and Marshal”—an apparent reference to the High Court of Chivalry, which dealt with treason and murder committed abroad.⁵ But what, if anything, did the King’s Bench make of the attorney’s jurisdictional claims? And more to the point, what happened after bail was denied? The bail report does not say.

If Hutchinson did ultimately appear before the Court of Chivalry—and if that court accepted a plea of prior acquittal in Portugal—this would be paltry evidence of any common-law principle, which is what Gamble cites *Hutchinson* to establish. After all, the High Court of Chivalry was a civil-law court *prohibited* from proceeding under the common law (unlike every other English court of the time save Admiralty). 8 Ric. 2, ch. 5; see also Squibb 162; *id.*, at xxv–xxvi

³See J. Beattie, *Crime and the Courts in England: 1660–1800*, pp. 281–282 (1986).

⁴Although this Act reached conduct committed “out of the King Majesties Realme of Englande and other his Graces [Dominions],” Acte concerninge the triall of Treasons 1543–1544, 35 Hen. 8, ch. 2 (1543–1544), it applied only to treasons and misprisions of treason—not to homicide, of which Hutchinson was accused.

⁵See G. Squibb, *The High Court of Chivalry* 54, 147–148 (1959) (Squibb); 4 Blackstone 267.